



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8115 (EXTENSION)
THIRD REVISION May 29, 1985

In accordance with 49 CFR 107.109 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8115 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to February 28, 1999. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.109. This extension constitutes a necessary part of this exemption and must be attached to it.

for Alan I. Roberts

Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

3/25/97
(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

EFI Corporation, d/b/a EFIC
Fremont, CA

December 19, 1996

*Expired - No Renewal
Not Active*

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DOT-E 8115
(THIRD REVISION)

1. Acurex Corporation, Aerotherm Aerospace Systems Division, Mountain View, California, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark, and sell the packaging prescribed in paragraph 7 below for use in transportation of certain non-flammable compressed gases described in paragraph 3 below in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of non-DOT specification cylinders, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Acurex Corporations' petition dated November 27, 1984, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon and supplemental information submitted by EFI Corporation dated May 21, 1985.

3. HAZARDOUS MATERIALS (Descriptor and class).

a. Air, oxygen, helium, and helium - oxygen mixtures; classed as nonflammable gases. For cylinders charged with oxygen, see 49 CFR 173.302(a)(5)(i) thru (a)(5)(iv).

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific commodity name or the generic description as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.302(a)(1), 173.304(a),(d), 175.3.

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, passenger-carrying aircraft, cargo-only aircraft.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification fiber reinforced plastic (FRP) hoop wrapped (HW) cylinder made in accordance with Acurex Corporation's technical data submitted with their petition, on file with the Office of Hazardous Materials Regulations (OHMR), and in full compliance with DOT FRP-2 Standard dated January 15, 1982 (178.BB), except as follows:

§ 178.BB-5 Material.

(a) Aluminum liner must be 6351-T6 alloy and temper.

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§ 178.BB-15 Marking.

(a) Each cylinder must be permanently marked (other than stamping in the composite) in the composite wrap on the side near the end of the cylinder containing the valve outlet, except that

"DOT-E 8115" followed by the service pressure and the inspectors mark must be located in the composite wrap. Other required markings must be in the composite wrap or on the metal shoulder, top head or neck of the cylinder.

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8. SPECIAL PROVISIONS.

a. Shippers may use the packaging covered by this exemption pursuant to 49 CFR 173.22a.

b. Production is limited to 1,000 cylinder (900 plus 100 heretofore authorized) only. Complete identification and serial numbers of these cylinders must be submitted to the OHMR. A field surveillance testing program must be conducted on the cylinder used under this exemption.

c. Cylinder service life must not exceed 15 years .

d. Cylinder must be packaged in accordance with 173.301(k).

e. Each cylinder must be reinspected and hydrostatically retested every three years in accordance with 49 CFR 173.34(e) as prescribed for DOT 3HT cylinders, except that permanent volumetric expansion for cylinders made after July 1, 1979 must not exceed 5 percent of total volumetric expansion at test pressure, and the rejection elastic expansion criterion does not apply. Retest dates must be stamped into the metal of the cylinder shoulder near the original test date.

f. A copy of this exemption must be carried aboard each cargo vessel and aircraft used to transport packages covered by this exemption.

g. A cylinder which has been subjected to action of fire must not be returned to service.

h. No new construction is authorized.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMR as soon as practicable.

10. EXPIRATION DATE. January 15, 1987.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

MAY 29 1985

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions
Branch.

Dist: FHWA, USCG, FRA, FAA